Topic 16 — Constitutional Amendments

Covers syllabus (click to expand)

Art. 368 | Procedure (प्रक्रिया) | Simple / Special / Special+State | Basic Structure | 1st | 7th | 24th | 25th | 26th | 36th | 42nd (42वां) (Mini-Constitution) | 44th (44वां संशोधन) | 52nd | 61st | 69th | 73rd | 74th | 86th | 91st | 97th | 101st | 102nd | 103rd | 104th | 105th | 106th

Sources baked in: Laxmikanth (Amendment), Art. 368, *Shankari Prasad → Kesavananda → Minerva Mills → IR Coelho*, listed Amendment Acts, UPPCS PYQs 2018–2025 **Weight:** ★★★ — Kesavananda **1973** (2020/22); chronology (2024); 24th before Kesavananda (2021); 42nd **Socialist+Secular** (2025) · **43A** (2019) · year **1976** (2024); GST **101st** (2021/24); RTE **86th** (2022); local bodies **73rd+74th** (2024); 350B = **7th not 9th Last verified:** September 2026 — Ghatnachakra Extra Drill (Amendments) **Current Affairs:** 106th (women 33%) **not in force** till delimitation; 105th restored State OBC lists (2021)

Current Affairs

- **2025** — 42nd Preamble (प्रस्तावना) = Socialist + Secular (direct).
- **2024** — Kesavananda (केशवानंद भारती 1973) chronology; 42nd = **1976**; GST (वस्तु एवं सेवा कर) = **101st**; local bodies = **73rd+74th**.
- **2021** — Golaknath (गोलकनाथ 1967) → 24th → Kesavananda → 42nd (order trap); *Rajendra N. Shah* — 97th Part IXB (सहकारिता) dead for **State** co-ops.
- **2019** — 43A workers (42nd DPSP (राज्य के नीति निदेशक तत्व)).
- **2022** — RTE = **86th** not 103rd; Delhi NCT = **69th**; *Janhit Abhiyan* upholds EWS (103rd valid).
- **2023** — 106th women 33% — **not** yet in force; waits delimitation.

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q118

The 101st Constitutional Amendment Act is related with

A. Reservation for EWS B. Delimitation of Constituencies C. Anti-defection Law D. Nationwide Goods and Services Tax (GST)

Show answer

Logic: The 101st Amendment created the GST framework; the 103rd Amendment concerns EWS reservation. **Ans: D (Series B provisional key).** 101st Amendment (2016) introduced GST / GST Council (जीएसटी परिषद). EWS is 103rd; anti-defection is 52nd.

Q. UKPCS Prelims 2025, Q128

The size of the Council of Ministers was fixed up to 15 per cent of the total members of the Lok Sabha (लोकसभा) by which Amendment?

A. 91st Constitutional Amendment Act, 2003 B. 92nd Constitutional Amendment Act, 2003 C. 74th Constitutional Amendment Act, 1992 D. 86th Constitutional Amendment Act, 2002

Show answer

Logic: The 91st Amendment imposed the ministry-size ceiling; the nearby 92nd Amendment added Eighth Schedule (आठवीं अनुसूची) languages. **Ans: A (Series B provisional key).** 91st Amendment (2003) capped CoM at 15% of Lok Sabha / Assembly strength. 92nd added Eighth Schedule languages.

Frame

How you amend (Art. **368**) + **which Amd** inserted/moved a provision: 1st → 15(4)/9th Sch · 42nd Preamble words · 44th Emergency rewrite · 61st voting age 18 · 73rd/74th PRIs/ULBs · 86th 21A · 101st GST Council · 102nd NCBC 338B.

Article 368 — procedure

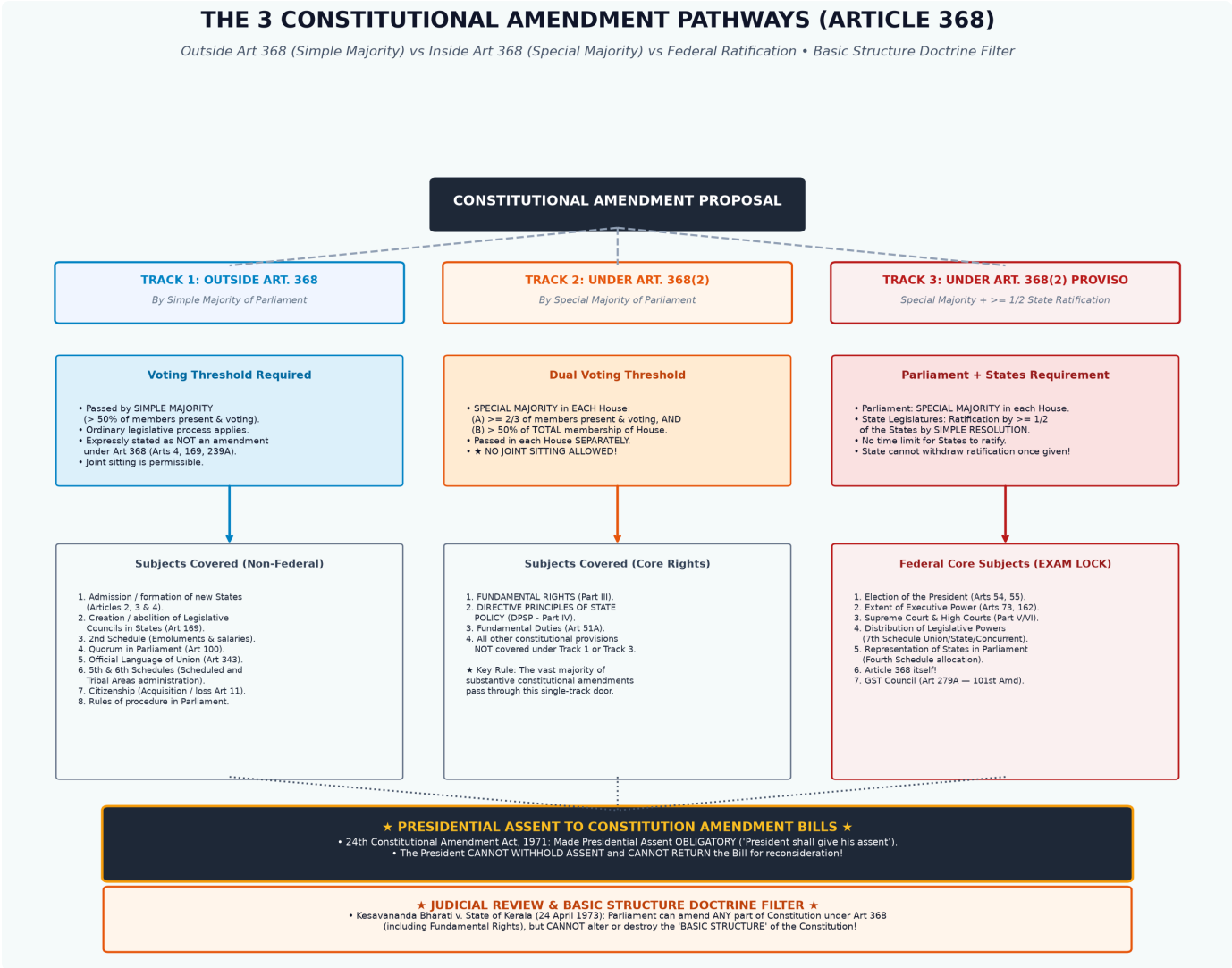
Part XX. Only article in that Part. Parliament amends; **not** a State Bill; **not** a Money Bill.

- Introduced in **either** House.
- **No** joint sitting (108 does not apply). If one House rejects, the Bill **dies**.
- After 24th: President **shall** assent. No pocket/return once it is a 368 Bill presented for assent.
- Where ratification is needed: **half** of State *legislatures* (not half of MLAs in India). **No time-limit** in 368. No State can "veto" after half have ratified.
- *Kesavananda / Minerva*: 368 is **limited** by basic structure. 42nd's "no court" clause is **dead**.
- Who moves: Minister **or** private member. **No** prior Presidential recommendation (unlike a Money Bill / Art. 3).
- Each House must pass **separately**. RS is a full equal — it cannot be bypassed.
- *Kesavananda*: Preamble **can** be amended, but not so as to tear the basic structure (42nd did add words).
- Informal change: judicial interpretation, conventions, laws under the Constitution — **not** 368. still wants the **formal** three-lane map.
- Indian type: **neither** purely flexible nor purely rigid — three lanes.
- "Total membership" = all seats of that House — **vacancies still count** in the denominator.
- "Present and voting" = only those who **cast a vote**. Abstention / walkout does **not** help the 2/3.
- State ratification: State legislature — **ordinary majority**. **No** special majority inside the State. **No** referendum. **UTs do not** ratify.
- Time-limit: **none** in 368. President may wait till half the States have ratified, then assent.

- First Amd = **1951** (Nehru (नेहरू)). Latest syllabus bullet = **106th (2023)**.

> **Logic:** RS is equal on a 368 Bill; vacancies still count in "total membership."

Procedural Flowchart: Article 368 Amendment Pathways & Basic Structure Filter



Three classes of amendment

Type	Procedure	Typical use
Simple majority	Ordinary Bill; **outside** 368	New State, 169 Council, 5th/6th Sch, salaries, quorum (गणपूर्ति)
Special majority	368(2): majority of **total membership** (सदन की कुल सदस्य संख्या का) + **2/3 present & voting**	Most amendments (FRs, DPSPs, 368-without-proviso)
Special + States	Same special majority **plus** legislatures of **not less than half** the States	Federal list (President, 73/162, SC/HC, 7th Sch, 368 itself, State RS seats, **279A**)

1. Simple majority (not under 368)

These look like Constitution-editing but travel as **ordinary Bills** (Art. 4 says they are **not** 368 amendments).

- New State / change name-boundary — Arts. **3–4**.
- Legislative Council create/abolish — **169**.
- 5th / 6th Schedule (6वीं अनुसूची) — 244 machinery.
- 2nd Schedule (emoluments).
- Quorum, salaries of MPs/judges (as the article allows) — 100, 125, 221…
- Official language of a **State** — **345**.
- Citizenship rules as Parliament provides — **11**.
- UT legislature (Puducherry etc.) — **239A**.
- Number of puisne judges / acting CJ (as the article allows) — 124, 126, 223…
- English in Parliament / Union official language (संघ राजभाषा) continuation — **120 / 343** machinery.
- Use of Hindi in courts as Parliament provides — **348**.
- All-India Services creation — **312** (RS special 2/3 — still **not** a 368 federal-ratification Bill).

2. Special majority — Art. 368(2)

Majority of the **total membership** of each House **and2/3 of members present and voting**. Most amendments (FRs, DPSPs, 368-without-proviso).

3. Special majority + State ratification

Same special majority **plus** legislatures of **not less than half** the States. Federal list:

1. Election of **President** (54, 55)
2. Extent of **executive** power Union/States (73, 162)
3. **Supreme Court / High Courts**
4. **7th Schedule** distribution
5. Representation of States in **Parliament**
6. **Art. 368** itself
7. GST Council **279A** (added by **101st**)

> **Logic:** “Every amendment needs half the States” is **false**. “State reorganisation needs 368 special majority” is **false** — **simple**, Art. 4.

Basic Structure — case ladder (2024/2021 fact)

Kesavananda 1973 is the fact; the ladder is the 2024/2021 PYQ.

- In *Shankari Prasad* (**1951**), the Court held that Article 368 lets Parliament amend Fundamental Rights too, and upheld the **1st Amendment** as valid.
- In *Sajjan Singh* (**1965**), the Court reaffirmed the same view and upheld the **17th Amendment**.

- In *Golaknath* (**1967**), the Court reversed course: it held that Fundamental Rights **cannot** be amended, that an amendment under Article 368 is not "law" for the purposes of Article 13, and it made this ruling **prospective** only.
- The **24th Amendment (1971)** was Parliament's reply to *Golaknath* — see the separate card below.
- In *Kesavananda Bharati* (**24 April 1973**), a 13-judge Bench held that Parliament **can** amend any part of the Constitution, **including** the Fundamental Rights, but **cannot** touch the **basic structure**. The Bench upheld the 24th Amendment, and upheld the first limb of the 25th Amendment's Article 31C (protecting laws under 39(b)/(c)), while striking down its "no judicial review" limb.
- The **42nd Amendment (1976)** inserted **Articles 368(4) and (5)**, barring courts from questioning an amendment and declaring the amending power unlimited.
- In *Minerva Mills* (**1980**), the Court **struck down 368(4) and (5)**, holding that a limited amending power **is itself** part of the basic structure; it also struck the 42nd Amendment's extension of **Article 31C to all Directive Principles (राज्य के नीति निदेशक तत्व)**.
- In *Waman Rao* (**1981**), the Court held that Ninth Schedule (नौवीं अनुसूची) laws inserted **after 24 April 1973** remain open to basic-structure review.
- In *IR Coelho* (**2007**), the Court reaffirmed the same principle: the Ninth Schedule is **not** a penthouse standing above the basic structure.
- In the *NJAC* case (**2015**), the Court struck down the **99th Amendment**, holding that judicial independence is part of the basic structure — proof that even a ratified amendment **can die**.

PYQ — UPPCS Prelims 2024, Q126

Identify the correct chronological sequence:

1. Shankari Prasad vs Union of India
2. Sajjan Singh vs State of Rajasthan
3. Golaknath vs State of Punjab
4. Kesavananda Bharati vs State of Kerala

A. 1, 4, 3, 2 B. 3, 2, 1, 4 C. 1, 2, 3, 4 D. 3, 4, 2, 1

Show answer

Ans: C — 1951 → 1965 → 1967 → 1973.

PYQ — UPPCS Prelims 2021, Q42

Arrange: I Golaknath II Kesavananda III 24th Amd IV 42nd Amd

A. I, III, II, IV B. I, II, III, IV C. III, I, II, IV D. III, I, IV, II

Show answer

Ans: A.1967 → 1971 → 1973 → 1976.

PYQ — UPPCS Prelims 2022, Q37 / 2020, Q120

Basic structure was propounded in—

A. Kesavananda Bharati 1973 B. Golaknath 1967 C. Shankari Prasad 1951 D. Sajjan Singh 1965

Show answer

Ans: A — Kesavananda 1973. Golaknath is the **FR-cannot-amend** case, not “basic structure” as a phrase.

Basic-structure examples (name, don’t recite an official list): supremacy of the Constitution · republican / democratic form · secularism · federalism · separation of powers · judicial review · free and fair elections · Arts. **14, 19, 21** · limited amending power · welfare state. *Indira Nehru Gandhi* (1975, election case): **39th Amd** had parked the PM’s election in the 9th Schedule / beyond judicial reach — SC **struck** that. Added **rule of law, judicial review, free and fair elections** to the basic-structure talk.

39th Amendment, 1975 (neighbour, not a syllabus “major” bullet): election of President, VP, PM, Speaker taken out of court. *Indira Gandhi* killed the PM clause. **38th** made the President’s satisfaction on 352/356/360 “final” — **44th Amendment** (44वां संशोधन) took that finality off. Both sit on the road to **42nd**.

1st Amendment, 1951

Nehru’s reply to *Champakam Dorairajan* (caste admissions vs 15/29) · *Romesh Thappar* (press) · zamindari strikes. Assent **18 Jun 1951**. *Shankari Prasad* **upheld** it.

- **15(4)** — special provision for SEBCs + SC/ST (opens the reservation door after *Champakam*).
- **19(2)** — added **public order, friendly relations with foreign States, incitement to an offence**.
- **19(6)** — State monopoly / nationalisation is a reasonable restriction.
- **31A** — saving of laws taking **estates** (agrarian reform).
- **31B + 9th Schedule** — laws listed in the Schedule **cannot be void for FR**. Started with **13** Acts.
- Later cap: *Waman Rao / IR Coelho* — 9th Schedule laws **after 24 Apr 1973** still face **basic structure**.

17th, 1964 (*Sajjan Singh*’s target): more Acts into the 9th Schedule; widened “estate”. Not a syllabus major — only the **1965** case’s subject.

9th Amendment, 1960 (name-trap, not a major bullet): **Berubari** / India–Pakistan boundary. **Not** 350B (that is **7th**). **Not** the 9th *Schedule*.

7th Amendment, 1956

States Reorganisation (Fazl Ali · Kunzru · Panikkar). In force **1 Nov 1956**. Abolished Part A (ए)/B/C/D classification. Picture then: **14 States + 6 UTs**. 1st Schedule redrawn; **4th Schedule** (चौथी) (RS seats) recast.

- **Article 222** provides for the transfer of High Court judges.
- **Article 231** allows a common High Court for two or more States.
- **Article 241** provides for a High Court for Union Territories.
- **Article 350A** directs mother-tongue instruction at the **primary** stage.
- **Article 350B** created **one** Special Officer for Linguistic Minorities for **all of India** — a **7th Amendment**, not 9th, insertion, and a constitutional office, not a commission.

- **Articles 239 and 239A** deal with the administration of Union Territories as a class.
- **Article 258A** lets a **Stateentrust** functions to the Union, the reverse of Article 258.
- Zonal Councils are **not** a 7th Amendment creation — they come from the **States Reorganisation Act, 1956**, a statute, not this amendment.

24th Amendment, 1971

Parliament's answer to *Golaknath*. Assent **5 Nov 1971**.

- **13(4)** — nothing in Art. 13 applies to a **368** amendment.
- **368(1)** — Parliament **may** amend **any** provision.
- President **shall** assent — pocket/return gone for a 368 Bill.
- Heading widened: "Power of Parliament to amend… and procedure."
- *Kesavananda* — 24th **upheld**, but basic structure **caps** it.
- *Golaknath* was **prospective** — pre-1967 amendments **stayed**; 24th tried to kill the bar for the future.

25th Amendment, 1971

Bank-nationalisation reply. Triggered by *R.C. Cooper* (**1970**) — Court had read "compensation" as market value.

- Property: "compensation" in 31(2) → **amount** fixed by law.
- **31C born** — a law giving effect to **39(b) and 39(c)** cannot be void for **14 / 19**.
- Second limb: "shall not be questioned in any court" whether it gives effect to 39(b)(c).
- *Kesavananda*: first limb (39b/c shield) **valid**. Second limb (**no judicial review**) **struck**.
- Later: 42nd stretched 31C to **all** DPSP → *Minerva* **cut it back** to 39(b)(c).

26th Amendment, 1971

Privy purses abolished. Assent **28 Dec 1971**.

- Parliament had to use a constitutional amendment because, in *Madhav Rao Scindia* (**1970**), the Court had struck down an earlier **executive** attempt to derecognise the rulers.
- The 26th Amendment omitted **Article 291** (privy purses) and **Article 362** (personal rights of rulers).
- It inserted **Article 363A**, under which rulers **ceased to be recognised** and their purses **stopped**, with no court open to hear a challenge on this.
- Trap: this is **not** the 26 *January* Republic Day story — it is simply the **26th Amendment**, numbered in sequence.

36th Amendment, 1975

Sikkim = 22nd State. In force **26 Apr 1975**. **Art. 371F** special (old laws, Assembly, one LS seat, HC). 1st / 4th Schedules amended.

- **35th, 1974** — Sikkim as an **"associate State"**; a **10th Schedule** held the terms of association.
- **36th** — full statehood; that **old 10th Schedule repealed**.
- **52nd, 1985** — inserted the **present** 10th Schedule (defection). Two different 10th Schedules — **do not mix**.

42nd Amendment, 1976

Mini-Constitution (during Emergency). **Swaran Singh Committee** for duties. Date fact **1976** (2024 year-match). Act date **18 Dec 1976** (not 1975 Emergency day / not 1978).

- The 42nd Amendment added the words **Socialist**, **Secular**, and **Integrity** to the Preamble (2025 trap: only Socialist and Secular were 42nd inserts — **Sovereign** and **Republic** were already there in 1950).
- It inserted **Article 39A**, the DPSP on equal justice and free legal aid.
- It inserted **Article 43A**, the DPSP on workers' participation in management (asked directly in **2019**).
- It inserted **Article 48A**, the DPSP on protecting the environment (पर्यावरण).
- It recast **Article 39(f)**, the DPSP on the welfare of children.
- It inserted **Article 51A**, giving the Constitution ten Fundamental Duties (an eleventh was added later by the **86th**). The Swaran Singh Committee had proposed only **8** duties; the Constitution ended up with **10**.
- It extended **Article 31C**'s protection from Articles 14/19 to **all** Directive Principles, not just 39(b) and 39(c) — *Minerva Mills* later **struck** this extension.
- It inserted **Articles 368(4) and (5)**, barring judicial review of constitutional amendments — *Minerva Mills* later **struck** these clauses too.
- It made the advice of the Council of Ministers **binding** on the President under Article 74 (the 44th Amendment later added one right of reconsideration).
- It moved **five** subjects from the State List (राज्य सूची) to the Concurrent List: education, forests, weights and measures, protection of wild animals and birds, and administration of justice (except the Supreme Court and High Courts).
- It inserted **Articles 32A, 131A, 144A, 226A, and 228A**, curbing the power of High Courts and the Supreme Court to rule on the validity of central laws.
- It inserted **Part XIVA** (भाग XIVA) (Articles **323A** and **323B**), enabling administrative and other tribunals.
- The **43rd Amendment (1977)** later repealed these judicial bars (32A, 131A, and the rest), though the tribunals under Part XIVA **stayed**.
- It inserted **Article 257A**, letting the Union deploy its armed forces in a State; the **44th Amendment** later repealed this article.
- It extended the life of the Lok Sabha (लोकसभा का कार्यकाल समाप्त) and State Assemblies from five years to **six years** (Articles 83 and 172); the **44th Amendment** restored the term to **five years**.

- It tied the population (जनसंख्या) base for delimiting Lok Sabha and Assembly seats, and for the President's electoral-college value, to the **1971 census** (the **84th Amendment** later froze this further, till the first census after **2026**).
- It inserted **Article 31D**, letting Parliament restrict Fundamental Rights to combat anti-national activities and associations; the **43rd Amendment** repealed this article too.
- It inserted **Article 139A**, allowing transfer of certain cases to the Supreme Court — this provision **survived** the 44th Amendment.
- It froze the meaning of legislative privileges under **Articles 105 and 194** to their pre-42nd sense; the **44th Amendment** fixed the freeze date as **20 June 1979**.
- It inserted **Article 312A**, letting Parliament vary the conditions of service of All-India Service officers appointed before 1966.

> **Logic:** Mini-Constitution = largest single rewrite. 42nd packed; 44th unpacked Emergency and property — FDs, 39A/43A/48A, Concurrent shift **stayed**.

PYQ — UPPCS Prelims 2025, Q56

Which words were added to the Preamble by the 42nd Amendment?

1. Socialist
2. Secular
3. Sovereignty
4. Republic

A. 1 and 3 B. 3 and 4 C. 2 and 3 D. 1 and 2

Show answer

Ans: D — 1 and 2. Sovereign & Republic are **original**.

PYQ — UPPCS Prelims 2019, Q106

Which Article was inserted by the 42nd Amendment to provide for participation of workers in management?

A. 38 B. 39A C. 45 D. 43A

Show answer

Ans: D — 43A. 39A = legal aid (also 42nd).

PYQ — UPPCS Prelims 2024, Q127

Match amendments with year: A. 42nd B. 52nd C. 86th D. 96th 1. 1985 2. 2011 3. 1976 4. 2002

A. A-2, B-1, C-3, D-4 B. A-4, B-3, C-2, D-1 C. A-1, B-2, C-3, D-4 D. A-3, B-1, C-4, D-2

Show answer

Ans: D. 42nd **1976** · 52nd **1985** · 86th **2002** · 96th **2011** (Oriya → **Odia** in 8th Schedule (अष्टम अनुसूची)).

44th Amendment, 1978

Janata unwind of 42nd. Assent **30 Apr 1979** (Act year still **1978**). Unwinds the worst of 42nd: **armed rebellion** replaces internal disturbance; **written Cabinet** advice for 352; Arts. **20 and 21** unsuspendable; property → **300A**; LS can force-revoke 352.

- It deleted **Article 19(1)(f)** and **Article 31** from Part III, so the Right to Property is no longer a Fundamental Right — it became **Article 300A** in Part XII, a mere legal right.
- It changed the ground for a National Emergency (राष्ट्रीय आपात) from "internal disturbance" to **armed rebellion**.
- It required a **written** recommendation of the Union Cabinet before a 352 proclamation, in place of the Prime Minister's advice alone.
- It cut the approval window for a 352 proclamation from two months to **one month**.
- It raised the approval requirement for 352 from a simple majority to a **special** majority.
- It gave the Lok Sabha the power to force revocation of a 352 proclamation by a resolution of **disapproval**.
- It confined **Article 358**'s automatic suspension of Article 19 to **war or external aggression** only, excluding armed rebellion.
- It barred **Article 359** orders from ever suspending the enforcement of **Articles 20 and 21**.
- It amended **Article 74** so the President may send the Council of Ministers' advice back for reconsideration **once**, but must act on it thereafter.
- It restored the wide writ jurisdiction of High Courts under **Article 226**, which the 42nd Amendment had narrowed.
- It restored the term of the Lok Sabha and State Assemblies to **five years**, reversing the 42nd Amendment's extension to six years.
- It removed the 38th Amendment's rule that the President's "satisfaction" under 352/356/360 was final, making these proclamations **justiciable** again.
- It inserted **Article 38(2)**, the DPSP on minimising inequalities of income, status, facilities, and opportunities — this is a **44th**, not a 42nd, insertion.
- It inserted **Article 361A**, protecting publication of **substantially true** reports of parliamentary proceedings.
- It restored the advisory-board safeguard for persons held under preventive detention (Article 22).
- It restored the Supreme Court's jurisdiction over doubts and disputes on the President's or Vice-President's election under **Article 71**, which the 39th Amendment had tried to park elsewhere.
- It repealed **Article 257A**, which had let the Union deploy armed units in a State.
- It fixed **20 June 1979** as the freeze date for the pre-42nd meaning of privileges under Articles 105 and 194.
- What the 44th did **not** undo: the Preamble words added by the 42nd, the ten Fundamental Duties (51A), the DPSPs 39A/43A/48A, the five subjects shifted to the Concurrent List, and the tribunals

under Articles 323A/323B.

52nd Amendment, 1985

Present 10th Schedule (anti-defection). In force **1 Mar 1985** (Rajiv). Whip on a confidence/money/10th-Sch. vote can trigger defection.

- Grounds (para 2): voluntarily giving up membership **or** voting / abstaining vs the party whip (unless condoned in **15 days**).
- Who decides: **Speaker / Chairman** (para 6).
- Review: *Kihoto Hollohan* (**1992**) — para 7's total bar is read down; order is **judicially reviewable**.
- Original split (para 3): **1/3** of a legislature party could split and keep seats — **91st deleted para 3**.
- Merger that remains (para 4): **≥2/3** of the legislature party.
- Independent: joining a party = defect. **No** 6-month window.
- Nominated: **6 months** to join a party; thereafter bound.
- Earlier 10th Schedule was **Sikkim associate** (35th). **36th repealed** it. **52nd wrote a new one**.

52nd = Schedule goes in.91st = Schedule tightens + ministry cap + 361B.

61st Amendment, 1988

Voting age 21 → 18. In force **28 Mar 1989**. Art. **326** for LS and State Assemblies. Does **not** change **membership** age: LS **25** / RS **30** / Assembly **25**.

- **61st** = adult suffrage age **18**.
- **62nd, 1989** = extended **SC/ST + Anglo-Indian** reservation (a **334** extension, not franchise).
- **63rd / 64th / 65th** = failed or unrelated local-body / SC-ST Bills — **not** the voting-age Amd.
- 2021 options try **62 / 63 / 66**. Answer **61st**.

69th Amendment, 1991

NCT of Delhi. Arts. **239AA / 239AB**. In force **1 Feb 1992**. Assembly + CoM with CM; **LG** as administrator. **Not** a full State.

- Delhi **cannot** legislate **public order, police, land** (and related entries) — stay Union.
- **239AB** — President may suspend 239AA machinery (Delhi analogue of **356**).
- Assembly strength by law (presently **70** elected).
- CoM collectively responsible to the **Assembly**.
- **70th, 1992** included **NCT + Puducherry** in the **Presidential electoral college** (54/55). **Not** the Amd that created NCT.
- 2022 wording: paper said "National Capital **Region**" — they mean **NCT**. NCR planning belt = **NCRPB Act 1985**, not 69th.

- GNCTD (Amendment) Act **2021** and the 2023 services tussle = **statute + SC**, not a new constitutional amendment. Don't rename 69th.

73rd & 74th Amendments, 1992

Local bodies. Rajiv-era 64th/65th Bills had **failed**. These two **passed 1992**, needed **State ratification**. 73rd/74th in force 1993; 11th=29, 12th=18.

	73rd	74th
In force	**24 Apr 1993** (National Panchayati Raj (पंचायती राज) Day)	**1 Jun 1993**
Part	**IX** — Arts. **243–243O**	**IXA** — Arts. **243P–243ZG**
Schedule	**11th** — **29** items	**12th** — **18** items
Body	Panchayats (village / intermediate / district)	Municipalities (Nagar Panchayat (नगर पंचायत) / Council / Corporation)
Compulsory skeleton	Gram Sabha (ग्राम सभा) · 3-tier (skip middle if pop. ≤ **20 lakh**) · direct elections · age **21** · **5-year** term · SC/ST + women ≥ **1/3** · **SFC** · **SEC**	Same SEC/SFC logic · **DPC (243ZD)** · **MPC (243ZE)** for big urban (नगरीय) agglomerations
Does **not** apply	**243M**: Nagaland, Meghalaya (मेघालय), Mizoram; Manipur hill councils; DGHC area; Schedule V unless PESA extends	Some hill/scheduled areas as the Part provides
What it did **not** do	Nyaya (न्याय) Panchayats · force all 29 subjects · fix 50% women as the constitutional floor	Make every town a Municipal Corporation

2024: local governance Amds = **73rd and 74th** (not 86/87, not 42/43, not 63/64).

86th Amendment, 2002

RTE as a Fundamental Right. Assent **12 Dec 2002**. Constitutionalises *Unnikrishnan* (1993) for a **defined age band**.

- **21A** — free and compulsory education, **6–14** — a **FR** (State shall provide).
- **45** recast: early childhood care and education **below 6**. Old 45 was education **till 14**.
- **51A(k)** — parent / guardian **duty** to provide education **6–14** — the **11th** Fundamental Duty.
- RTE Act **2009** is the **statute**. **21A** commenced (लागू) **1 Apr 2010** — not on the 2002 assent day.
- **93rd, 2005** = **15(5)** — reservation in **private unaided** (except minority). **Not** RTE.
- **103rd, 2019** = **EWS 10%**. 2022 trap: RTE ≠ 103rd.

91st Amendment, 2003

Jumbo-ministry cap + 1/3 split killed. Stops "split then become minister."

- Union CoM: PM + ministers ≤ **15%** of **LS** strength (**75(1A)**). RS strength is **irrelevant**.
- State CoM: CM + ministers ≤ **15%** of the Assembly, **floor 12** (**164(1A)**).
- NCT Delhi: cap is **10%** of the Assembly (**239AA**, as amended).
- 10th Schedule: **para 3 (1/3 split) deleted**. Only **≥2/3 merger** (para 4) remains.
- Defector **cannot** be a minister till re-elected — **75(1B) / 164(1B)**.
- **361B** — defector also barred from any **remunerative political post** till the term ends or (s)he is re-elected.

97th Amendment, 2011

Co-operative societies. In force **15 Feb 2012**. Three inserts:

- **19(1)(c)** — "co-operative societies" added to the freedom-to-form-associations clause.
- **43B** — DPSP: State to promote voluntary, democratic, professional co-ops.
- **Part IXB** — Arts. **243ZH–243ZT**: board size, elections, term, reservation, audit.

Union of India v. Rajendra N. Shah (**Jul 2021**): Part IXB as applied to **State** co-ops touched **State List Entry 32** and needed **ratification** — Parliament had **not** taken that lane. **Struck for State societies.** Survives for **multi-State** co-ops (Union List (संघ सूची)). **19(1)(c) and 43B survived** (they are not federal-list provisions).

101st Amendment, 2016

GST (levy from **1 Jul 2017**). Assent **8 Sep 2016**. Needed **State ratification** (279A is on the federal list).

- **246A** lets both the Union **and** the States levy GST, as a special concurrent power; under **246A(2)**, **IGST** is levied exclusively by the Union.
- **269A** provides that IGST is collected by the Union and then **apportioned** between the Union and the States.
- **279A** sets up the **GST Council** (जीएसटी परिषद), chaired by the Union FM, in which the Centre has **one-third** of the voting weight and all States together have **two-thirds** (दो-तिहाई); a decision needs **three-fourths** of the weighted votes, with a quorum of **half** the members.
- **Article 366(12A)** defines GST for the Constitution.
- The Amendment omitted **Article 268A**, the service-tax article inserted earlier by the 88th Amendment.
- Alcohol for **human consumption** is kept outside GST; five petroleum goods are outside for now, though the Council may recommend (सिफारिश) bringing them in later.
- The 101st Amendment itself said Parliament **shall** provide for compensating States; the compensation statute fixed a **5-year** window from 2017, later extended through the compensation cess — that extension is current affairs, not the Amendment's text.

2024 / 2021: GST Amd = **101st**, not 91 / 86 / 73 / 102 / 103 / 104.

102nd Amendment, 2018

NCBC constitutionalised. Assent **11 Aug 2018**. Constitutionalises the old **NCBC Act 1993** body. Standing NCBC = 338B from 102nd.

- **Article 338B** sets up the NCBC with a Chair, a Vice-Chair, and **three** members; the **President** appoints them, and **Parliament** may add to their duties.
- **Article 342A** lets the **President** notify SEBCs for a State or UT, after consulting the Governor; **Parliament** may amend that **Central** list.
- **Article 366(26C)** defines "socially and educationally backward classes."
- The match to remember: SC pairs with **338 + 341**, ST pairs with **338A + 342**, and OBC (अन्य पिछड़ा वर्ग) pairs with **338B + 342A**.

Jaishri Laxmanrao Patil (Maratha (मराठा), **2021**) read 342A as **only the President** may identify SEBCs even for a State — that reading (रीडिंग) is why **105th** had to follow.

103rd Amendment, 2019

EWS 10%. Assent **12 Jan 2019**. A **new** slice, not a reshuffle of 15(4)/16(4).

- **15(6)** — up to **10%** in educational institutions, **including private unaided**, **except minority** (30).
- **16(6)** — up to **10%** in public employment.
- Ceiling: **over and above** SC/ST/OBC. Does **not** eat 15(4)/16(4).
- Criteria: “economically weaker” — **State/Centre** notify (income / land / house). Not a caste list.
- *Janhit Abhiyan* (**7 Nov 2022**) — **upheld 3–2**. 50% ceiling is **not** inviolable for this slice. Dissent: economic-only + breach of 50%.
- Trap: 2022 RTE question options include **103rd** — RTE is **86th**.

104th Amendment, 2019

Anglo-Indian nomination ends. Effect **25 Jan 2020**. Art. **334** originally **10 years** from 26 Jan 1950; kept alive every decade.

- Six earlier amendments — the **8th, 23rd, 45th, 62nd, 79th, and 95th** — had each granted a successive **10-year** extension; the 95th took SC/ST and Anglo-Indian reservation up to **25 January 2020**.
- The **104th Amendment** extended **SC/ST** reserved seats in the Lok Sabha (**Article 330**) and State Assemblies (**Article 332**) up to **25 January 2030**, but it **ended**, rather than extended, **Anglo-Indian nomination** under **Articles 331 and 333**.
- SC/ST reserved *seats* in the Lok Sabha and State Assemblies thus continue till **25 January 2030**, while delimitation of those constituencies stays frozen till the census after **2026**.

105th Amendment, 2021

State OBC lists restored. Assent **18 Aug 2021**. Repair after the Maratha / 342A reading.

- The 105th Amendment restores to States the power to **identify and notify SEBCs** for **their own** services and education.
- It does **not** touch the **Central** list, which remains under **Article 342A** with the President, and it leaves **Article 338B** (the NCBC) unchanged.
- India now has two lists side by side: a **Central SEBC list** (for Union jobs and central education) and a **State SEBC list**.
- Remember the pair this way: the **102nd** gave the Centre the NCBC and the Central list; the **105th** gave States their list-power **back**.

106th Amendment, 2023

Nari Shakti (शक्ति) Vandan — women 33%. Assent **28 Sep 2023**. Bill was the **128th** Amendment Bill — **106th** is the Act number.

- The reservation applies through **Article 330A** in the Lok Sabha, **Article 332A** in State Assemblies, and also in Delhi under **Article 239AA**.
- It reserves **one-third** of **total** seats for women, **including** within the seats already reserved for SC/ST.
- **Not commenced.** Starts only after a **delimitation based on the first census after the Act** (**334A**). 84th freeze on LS seats lasts till the census **after 2026** — so 2024 LS had **no** 106th quota.
- How long: **15 years** from commencement (Parliament may extend).
- Rotation: seats reserved for women **rotate** after each delimitation.
- **Not** covered: **Rajya Sabha** (राज्यसभा). PRI/ULB women ≥ **1/3** is already **73rd/74th** (in force).

Year raata (52nd–106th)

- **52nd, 1985** — 10th Schedule.
- **61st, 1988/89** — voting age 18.
- **69th, 1991** — NCT Delhi.
- **73rd / 74th, 1992** (in force **1993**) — PRI / ULB.
- **86th, 2002** — 21A.
- **91st, 2003** — 15% CoM; merger 2/3.
- **97th, 2011** — co-ops (Part IXB).
- **101st, 2016** — GST.
- **102nd, 2018** — NCBC 338B.
- **103rd, 2019** — EWS 10%.
- **104th, 2019/20** — Anglo-Indian ends.

- **105th, 2021** — State OBC lists.
- **106th, 2023** — women 33% (after delimitation).
- **96th, 2011** (also asked) — Oriya → **Odia**.

Mains link (one frame)

368 is a **limited** power: procedure is rigid (no joint sitting; federal list needs States), substance is capped by ***Kesavananda***. Write the ladder **Golaknath** → **24th** → **Kesavananda** → **42nd** → **Minerva**. Close: **42nd** packed; **44th** unpacked Emergency and property. Later identity-facts: **73rd/74th** local bodies, **86th** RTE, **101st** GST, **103rd** EWS, **106th** women 33% (still waiting on delimitation).